

FEDERAL MARITIME COMMISSION

DOCKET NO. 22-21

MSRF, Inc. v. Yang Ming Marine Transport Corporation

**RESPONDENT’S MOTION TO COMPEL RESPONSES TO INTERROGATORIES
AND TO ORDER NEW ANSWERS TO REQUESTS FOR ADMISSION**

Yang Ming Marine Transport Corporation (“Respondent” or “Yang Ming”) hereby moves pursuant to 46 C.F.R. 502.147(a)(6) and 502.150 to compel MSRF, Inc. (“MSRF” or “Complainant”) to respond to Interrogatories and to provide new and sufficient answers to Requests for Admission, all as identified below.

INTRODUCTION

As the Presiding Officer is aware and as addressed in Respondent’s Motion for Reconsideration (and subsequent update/status report), Complainant’s responses to Respondent’s first set of discovery requests (dated October 17, 2022) have been repeatedly and substantially delayed. On December 21, 2022, the date ordered by the Presiding Officer, Complainant produced responses to Respondent’s Interrogatories and Requests for Admission, but no documents. Documents were not produced until January 3, 2023.¹

Unfortunately, Complainant’s responses were woefully deficient. Respondent identified the deficiencies by email to Complainant’s counsel but has not yet received any

¹ Respondent has not yet finished reviewing Complainant’s document production, as it was received only recently and totals over 5,775 pages. Accordingly, this motion will address only the interrogatories and requests for admission, leaving issues with the documents to another day.

response beyond a statement that Complainant will respond, but not when.²

In the normal course, we would wait longer for a response from Complainant before filing a motion to compel. But in this case, the strict schedule for discovery does not allow us to extend that courtesy. Accordingly, this motion has been filed now, seeking an Order to correct the deficiencies in Complainant's discovery responses.

SPECIFIC INTERROGATORIES AND REQUESTS FOR ADMISSIONS

In this section, Yang Ming addresses the discovery requests as to which it seeks to compel adequate responses. Respondent's relevant requests and Complainant's responses are set out verbatim and in full in Attachment A.³

A. Responses to Interrogatories

1. Responses to Interrogatories 4, 5, 6, 8, 9, 10, 11, 12, 13, 20, 21, 25, 26, 36, 38

In each of the above interrogatories, Respondent asked Complainant to respond about the application of law to the facts alleged in the Complaint. In each case, Complainant declined to respond, stating that the request called for a legal conclusion and invaded the attorney-client privilege. The only actual responses were references to the Complaint itself *See, e.g.,* Appendix A, Interrogatory 4. Some of these responses may have other deficiencies as well, noted in part 2, below.

Complainant's failure to respond to these interrogatories is directly contrary to 46 C.F.R. 145(a)(2), which states that "an interrogatory is not objectionable merely because it asks for

² As required by Rules 147 and 150, a Certificate of Consultation, a Certificate of Attempt to Confer and copies of the Certificates of Service are appended as Attachments.

³ In many cases, Complainant has stated in the response that it intends to supplement. Such supplementation is obviously untimely, but we will defer any argument on those matters until Complainant supplements the response or fails to do so soon.

an opinion or contention that relates to fact or the application of law to fact.” Each of the interrogatories identified above and quoted in Appendix A asks about Complainant’s contentions of fact or the application of law to fact. They are thus squarely within the scope of legitimate inquiry. See, e.g., *Ocean Network Express, Pte Ltd. and Ocean Network Express (North America), Inc. – Possible Violations of 46 U.S. C. § 41102(C)* 2022 FMC LEXIS 178, at *3-4 (ALJ 2022, Order Granting Motion to Compel). Nor do such interrogatories impinge in any way on the attorney-client privilege, as they do not ask about what Complainant said to its Counsel or vice versa.

2. Responses to Other Interrogatories.

The deficiencies in other responses may not be pigeonholed so neatly. They reflect a variety of faults, including failure to respond to the question posed (as by merely referencing the Complaint, rather than explaining it), purported claims of irrelevance regarding matters highly relevant to questions presented by the Complaint, such as the alternative shipping arrangements available to Complainant, which quite plainly go to the questions of what, if any, harm Complainant suffered and whether it mitigated its damages. Due to space constraints, we address them only briefly, by specific Interrogatory.

Interrogatory 15 [misstated in response as 16]. Response is incomplete and vague.

Interrogatories 16, 17. Untenable relevance objection -- identification of other MSRF contracts is relevant to the options available to MSRF, as well as damages and mitigation thereof.

Interrogatory 18. Response does not fairly respond to the question.

Interrogatory 19. Response does not fairly respond to the question. Relevance objection is invalid, as the requested information pertains to the options available to MSRF, as well as damages and mitigation thereof.

Interrogatories 27, 28, 29. Mere reference to complaint is insufficient.

Interrogatory 30. Untenable relevance objection -- Interrogatory plainly relevant to, *inter alia*, the claim that Respondent did not give MSRF the space that it needed, as well as the reasonableness of Respondent’s actions. Mere reference to a contract is patently insufficient.

Interrogatory 32. Response directly contradicts MSRF’s own admission. See RFA 23.

Interrogatory 33. Response incomplete because it does not identify communications between MSRF and Respondent for any of the listed shipments, as required by the interrogatory.

Interrogatory 34. Does not respond to the question asked.

Interrogatory 35. T Untenable relevance objection – interrogatory goes directly and obviously to the question of subject matter jurisdiction and the elements required to prove Complainant’s claim. Further, it directly addresses a specific allegation in the Complaint, which Complainant obviously deemed relevant.

Interrogatory 37. Non-responsive. Merely parroting a conclusory allegation in the Complaint does not constitute explanation.

Interrogatory 42. The interrogatory relates to multiple service contracts, while the response addresses only one.

B. Requests for Admission

As a general matter, MSRF has in many cases claimed insufficient information to admit or deny but has not stated what steps it took to identify relevant information. This is flatly contrary to the FMC’s Rules of Practice & Procedure. See 46 C.F.R. 502.147(a)(4) (emphases added):

If a matter is not admitted, the answer must specifically deny it *or state in detail why the answering party cannot truthfully admit or deny it*. A denial must fairly respond to the substance of the matter; and when good faith requires that a party qualify an answer or deny only a part of a matter, the answer must specify the part admitted and qualify or deny the rest. *The answering party may assert lack of knowledge or information* as a reason for failing to admit or deny *only if the party states that it has made reasonable inquiry and that the information it knows or can readily obtain is insufficient to enable it to admit or deny*.

As a second general matter, MSRF has repeatedly refused to answer requests for admission on the ground that the request “calls for a legal conclusion to which no response is required.” That is not a valid objection under the FMC’s Rules; 46 C.F.R. 502.147(a)(1) states that a request for admission may address “the truth of any nonprivileged relevant matters relating to facts, *the application of law to fact*, or

opinions about either.” See, e.g., *Ocean Network Express, Pte Ltd. and Ocean Network Express (North America), Inc. – Possible Violations of 46 U.S. C. § 41102(C)*, 2022 FMC LEXIS 178 (ALJ 2022, Order Granting Motion to Compel). .

Each of Respondent’s requests for admission and Complainant’s deficient responses is reproduced in full in Attachment A.

RFA 7. Fails to identify efforts made to find information. Data about trade deficits for containerized cargo is available from numerous sources.

RFA 9. Fails to identify efforts made to find information.

RFA 26. Fails to identify measures taken to determine if Respondent has contracts with NVOCCs. Fails to fairly respond to the substance of the matter.

RFA 29. Fails to identify measures taken to see if NVOCCs determine their own pricing. Fails to fairly respond to the substance of the matter.

RFAs 32, 37. Fails to fully respond to the substance of the request, given that Yang Ming provided MSRF with more space than it was required to do under the Contract as amended.

RFA 35, 36. Invalid claim that need not respond to so-called “conclusions of law.”

RFAs 40, 41. Fails to fully respond to the substance of the request.

ARGUMENT

FMC Rule 150 authorizes the Presiding Officer to compel a response where the responder fails to make a disclosure, answer, or respond, including an evasive or incomplete disclosure, answer, or response. Likewise, Rule 147(a)(6) mandates that the Presiding Officer order an answer to a request for admission where none has been provided and authorizes her to order that a new response be made to an insufficient response or that the request be deemed.

As detailed above, Complainant has provided insufficient responses to the enumerated interrogatories and requests for admission. Complainant’s failure to adequately

respond necessarily prejudices Respondent, especially in light of the tight discovery schedule in this proceeding. Accordingly, the Presiding Officer should issue an order compelling Complainant to answer the above-identified interrogatories and requests for admission and respond in full by a reasonable date.

CONSULTATION

As noted above, Respondent sent a list of deficiencies to Complainant, but Complainant has not yet responded.

DATED: January 6, 2023

Respectfully submitted,

/s/ Rebecca A. Fenneman

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ATTORNEYS FOR RESPONDENT

CERTIFICATE OF SERVICE

I certify that on the 6th day of January, 2023, a true and correct copy of the foregoing **Motion to Compel and Attachments** were served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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